

The Claremont City Council held a meeting on Wednesday, February 14, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:00 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor Spencer Batchelder
Ward III Councilor Jonathan Hayden – Entered at 6:11 p.m.
Assistant Mayor Debora Matteau
At-Large Councilor Joel Tremblay
At-Large Councilor Wayne Hemingway
At-Large Councilor William Limoges
At-Large Councilor Nicholas Koloski
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

NON-PUBLIC

City of Claremont Nonpublic Session Minutes City Council

Date: February 14, 2024

Members Present

**Councilor Koloski
Councilor Tremblay
Councilor Limoges
Assistant Mayor Matteau
Councilor Batchelder
Councilor Hemingway
Councilor Hayden – entered at 6:11 p.m.
Councilor O’Hearne
Mayor Girard**

Non-Members Invited to Attend Nonpublic Session

Yoshi Manale, City Manager
Alex Gleeson, Director of Public Works

Motion to enter Nonpublic Session made by Assistant Mayor Matteau seconded by Councilor Limoges.

Specific Statutory Reason cited as foundation for the nonpublic session:

RSA 91-A:3, II(d) *Consideration of the acquisition, sale or lease of real or personal property which, if discussed in public, would likely benefit a party or parties whose interests are adverse to those of the general community.*

Roll Call vote to enter nonpublic session: Majority vote required

Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Batchelder – yes
Hemingway – yes
O’Hearne – yes
Girard – yes
Motion: 8-0

Entered nonpublic session at 6:00 p.m.

Motion to leave nonpublic session and return to public session by Councilor O’Hearne, seconded by Councilor Limoges. (**Majority vote by roll call.**)

Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Batchelder – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion: 9-0

Start recording public meeting (if applicable).

Public session reconvened at 6:26 p.m.

Note: Under RSA 91-A:3, III. *Minutes of proceedings in nonpublic sessions shall be kept and the record of all actions shall be promptly made available for public inspection, except as provided in this section. Minutes of such sessions shall record all actions in such a manner that the vote of each member is ascertained and recorded. Minutes and decisions reached in nonpublic session shall be publicly disclosed within 72 hours of the meeting, unless, by recorded vote of 2/3 of the members present, it is determined that divulgence of the information likely would affect adversely the reputation of any person **other than a member of this board**, or render the proposed action of the board ineffective, or pertain to terrorism. In the event of such circumstances, information may be withheld until, in the opinion of a majority of members, the aforesaid circumstances no longer apply.*

Motion made to seal these minutes? If so, motion made by Assistant Mayor Matteau, seconded by Councilor Limoges because it is determined that divulgence of this information is likely to render a proposed action ineffective.

Roll Call Vote to seal minutes (2/3 vote required)

Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Batchelder – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion: 9-0

These minutes recorded by: Assistant Mayor Matteau

AGENDA CHANGES

Councilor O’Hearne suggested to move item B. under ‘Old Business’ Council Goals and Objectives to the end of the meeting.

By consensus of the City Council it was agreed to move item B to the end of the agenda.

REPORT OF THE SECRETARY

A motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to accept the minutes of the January 24, 2024, City Council meeting.

Voice vote:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 9-0

MAYOR’S NOTES

Mayor Girard reported receiving a note from the local Elks Lodge about the Elks Hoop Shoot Program participant Colton Pond, from Disnard Elementary School who will be attending a regional contest on March 9th in Portland Maine.

Parks and Recreation will be hosting several events, a father daughter dance this Friday.

Saturday February 24th, there will be a moonlight snowshoeing event at the Claremont Country Club starting promptly at 5:30 p.m.

Sunday February 25th, a paint and non-alcohol sip at the community center from 1:00 p.m. to 3:00 p.m.

February 26th through March 9th will be the Twin State Valley Basketball Tournament.

Tuesday February 27th, Parks and Recreation are hosting a trip to Boston for the Celtics game.

Arrowhead Recreation will be hosting their annual Cardboard Sled Race this Saturday.

CITY MANAGER’S REPORT

Manager Manale updated the City had signed an extension with Standard Electric Hydro.

Grant Consultant Merchant McIntyre is working with Planning and Development to prepare an application to the US Department of Agriculture for a rural development grant. Manager Manale explained the scope of the grant and noted there is a letter of support for proposal and if there are no objections, the letter will be sent.

The City has changed its banking partner to Claremont Savings Bank.

The diving board is being installed at the pool.

Councilor O'Hearne asked what the two new Highway Forman's names were.

Councilor Koloski asked for an update on 79E to be added to the packet.

Councilor Koloski asked for a cost breakdown when Parks and Recreation take trips out of the community.

Councilor Koloski asked to have additional information such as resumes given to Council when department head appointments are made.

Mayor Girard recognized the library for their good work.

APPOINTMENT TO BOARDS AND COMMITTEES

Conservation Commission

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to appoint Eric Ruffin to Seat 3 of the Conservation Commission.

Voice vote:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O'Hearne – yes

Girard – yes

Motion carried 9-0

Steering Committee for the EPA Multipurpose Grant

A motion was made by Councilor Koloski and seconded by Councilor O'Hearne to appoint Mary Lownie to Seat 7 of the Steering Committee for the EPA Multipurpose Grant.

Voice vote:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 9-0

CITIZEN’S FORUM

Mayor Girard gave a reminder that Citizens Forum is for non- agenda items with 5 minutes to speak each. Mayor Girard asked those who will speak to state their name and ward number, and noted there is a sign-up sheet in the back of Council Chambers.

Norman Blouin, Ward 3, shared several concerns: The City Manager, the City being stagnant with employment, businesses, and housing, the school system and low-test scores, downtown parking, and living outside of City limits.

OLD BUSINESS

Ordinance 620 CDA Amendments to City Code

A motion was made by Assistant Mayor Matteau and seconded by Councilor Tremblay to take Ordinance 620 from off the table.

Roll call:
Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Batchelder – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 9-0

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-FOUR

ORDINANCE #620

CLAREMONT CITY CODE AMENDMENTS

The City of Claremont Ordains:

A. Article 2, Division 5, of the Claremont City Code is hereby amended by changing the title to the section and adding or amending the following sections:

1. The title to Division 5 is amended and restated as:

Division 5. CLAREMONT DEVELOPMENT AUTHORITY

2. The Claremont City Code, Article 2, Division 5, is hereby amended by adding a new section, to be numbered 2-86, which section reads as follows:

Sec. 2-86. – Establishment.

The Claremont Development Authority is established under the provisions of RSA 162-G, for the purposes described in RSA 162-G:2, and is granted all powers, duties, and responsibilities described in RSA 162-G, including RSA 162-G:15-a, except those powers and duties expressly reserved to the City Council under RSA 162-G:8.

3. The Claremont City Code, Article 2, Division 5, Sections 2-86 – 2-89, are renumbered as sections 2-87 - 91 and amended and restated as follows:

Section 2-87. Governing Board.

The Claremont Development Authority shall be governed by a board of directors having nine (9) members, all of whom shall reside within the boundaries of the city. Members shall be appointed by the City Council. The term of each member shall be three (3) years, except that initial terms of members shall be staggered so that three members are appointed each year. Each member shall serve without compensation. Five (5) directors present shall constitute a quorum of the board of directors to transact any business. No action of the board of directors shall be effective unless it is passed by two-thirds of the directors present and voting. The City Manager shall serve as an ex officio nonvoting member of the board of directors.

Sec. 2-88. - Removal.

Any director of the Claremont Development Authority may be removed by the City Council for good cause.

Sec. 2-89. – Officers; Committees.

The board of directors of the Claremont Development Authority shall elect from its members a chairman, vice-chairman, and secretary.

Sec. 2-90. - Rules and regulations.

The board of directors shall establish rules and regulations for the conduct of the business of the Claremont Development Authority, subject to the approval of the City Council.

Sec 2-91. – Borrowing.

The Claremont Development Authority shall have the ability to issue bonds or obtain loans to pay project costs, as authorized by the City Council; any such bonds or loans shall not be considered obligations of the City or commit the City

to make expenditures in excess of any appropriations made by the City Council expressly for meeting the obligations incurred by the bonds or loans.

B. Article III, Division 8, Sections 2-265, of the Claremont City Code, is amended and restated as: Sec. 2-265. - Other responsibilities.

The department of planning and development and its director are also responsible for the following areas:

(1) *Historic district commission*: Its meetings, functions and concerns.

(2) *Claremont development authority (CDA)*: Its meetings, functions and concerns. The CDA shall reimburse the City for time spent by City employees on CDA activities.

(3) *Community development efforts* of the city, including the administration of grants.

C. Effective Date.

This ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to accept Ordinance 620 to a second reading at the next February 28th City Council Meeting.

Assistant Mayor Matteau read the explanation of proposed action into the record.

Mayor Girard opened up for public hearing.

Keith Raymond, Ward 2, asked Council to have the CDA suspension lifted to have a meeting.

Mayor Girard closed the public hearing.

Councilor O’Hearne asked if the Council would need to re-seat the committee.

Councilor Koloski does not agree on re-seating the members, and noted no issue with lifting the suspension.

Mayor Girard stated the suspension was held in December and in that suspension no members were removed.

Jon Stone, Ward 3, shared concern for the reduction of 13 seats to 9 seats and suggested it may be prudent to put appointments back out because of these changes.

Councilor Batchelder noted removal was asked back in December when the suspension was held and it was clarified to only be a suspension, not a removal.

Jon Stone, Ward 3, stated if this is the first reading, the lifting of the suspension shouldn’t take action until the second reading.

Roll call:

Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Batchelder – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 9-0

NEW BUSINESS

Train Station Association Presentation

Charlene Lovett, President of the Train Station Association gave a presentation and noted the Claremont Station Host Association was established in 2018 as an initiative that evolved from a Council ad-hoc committee, and is comprised of eighteen volunteers. The mission of the Association is to increase ridership, improve travel, keep the Amtrak Station in good working order, and be ambassadors for the City and region.

Councilor Koloski and Councilor Batchelder thanked all of the volunteers.

First Night Presentation

Charlene Lovett, current president of the Sugar River Rotary gave a presentation on First Night, and noted since 2015 this has been a New Years Eve celebration between the Sugar River Rotary Club and Claremont Parks and Recreation Department. Over a thousand people between New Hampshire and Vermont attended. Sponsors that provided financial support included: City of Claremont, Claremont Savings Bank, Mascoma Bank, Bar Harbor and Trust, Keady Family Practice, Healthy Connections, Century 21 Highview Realty, and Marro Home Center. Others provided venues and logistics included: City of Claremont, CSB Community Center, The Opera House, Maple Lanes, and Arrowhead Recreation Area.

Resolution 2024-25 First Night Proceeds

RESOLUTION 2024-25

Proceeds from First Night Button Sales

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS on December 31, 2023, the Claremont Parks & Recreation Department (the "Department"), in conjunction with the Claremont-Sugar River Rotary Club (the "Rotary Club"), co-sponsored First Night activities (the "Event") as a community celebration of the New Year; and

WHEREAS the Department collected \$309.00 from sale of First Night buttons and donations, which was part of the Rotary Club's fundraising activities; and

WHEREAS the Department would like to now distribute these funds to the Rotary Club;

NOW THEREFORE, BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to withdraw the total amount of \$309.00 from the Parks & Recreation Revenue Account and to distribute the sum of \$309.00 to the Rotary Club (with no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution.
(2/3 Vote Required)

Dated this 14th day of February 2024, the City of Claremont, County of Sullivan, State of New Hampshire.

Manager Manale reviewed the proceeds collected from the First Night Event and would like to distribute the funds to the Rotary Fund.

A motion was made by Councilor Limoges and seconded by Councilor Batchelder to accept resolution 2024-25.

Councilor Limoges read Resolution into the Record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Koloski – yes

Tremblay –yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 9-0

National Grid Presentation

Kaytlynn Monroe from Hiltop Public Solutions and Bethany Rocha, Senior Specialist, Stakeholder Management from National Grid gave a presentation essentially explaining the River Valley Reliability Project will be required to upgrade existing electric transmission lines. This transmission line experiences outages after its upgrade in 2008. The line in Vermont starts at Bellows Falls and ends at the wilder switchyard in Hartford VT. In New Hampshire the lines include Walpole, Charlestown, Claremont, Cornish, Plainfield, and Lebanon.

To upgrade the lines the RVRP will need to replace wood poles with modern steel structures. They are looking for a waiver for a Policy which would allow the building on class six roads, and an easement access request to get equipment to the areas.

CDBG

Nancy Merrill, Planning and Development Director stated the Community Development Block Grant Projects requires progress reports giving a chance for the non-profit recipients to report on where their projects are, and then introduced Kathy Pellerin the Executive Director of Claremont Learning Partnership, Michelle Aikens the Executive Director of Claremont Housing Authority for Marion Phillips Home, and Pascale Graham the Executive Director of Turning Points Network.

Mayor Girard wanted to note in the minutes an informational document is available in the hall and can be easily obtained.

Mayor Girard read from a script explaining the Community Development Block Grant Funds are available to municipalities through the NH Community Development Finance Authority. And all projects must directly benefit a majority of low – and moderate-income persons.

“Block Grant funds are available to municipalities through the NH Community Development Finance Authority. Up to \$500,000 annually is available for Economic Development Projects, up to \$500,000 for Housing Projects, up to \$500,000 for Public Facility Projects, up to \$500,000 in Emergency Funds, up to \$25,000 per Planning Study grant. All projects must directly benefit a majority of low- and moderate-income persons.

This is a proposed application to the Community Development Finance Authority for \$25,000 in Community Development Block Grant funds for the TPN Residences Study. The CDBG funds, less administration, will be sub granted to Turning Points Network (TPN) to study the development of four units of permanent housing at 227 Broad Street for survivors of domestic violence and sexual assault and other situations. The building to be studied is already owned by TPN and is situated adjacent to the recently completed TPN headquarters where TPN offers supportive services to its clientele. The

development will be designed to be accessible to individuals with varying needs and will provide TPN with another tool to use in their mission to ensure that everyone, regardless of ability, can access and benefit from the supportive services that they provide. The housing development will be designed with state-of-the-art security measures to ensure the safety and privacy of its residents. The Planning grant will be used for preliminary architectural and engineering, environmental review and related activities.

This project conforms with Claremont's Housing and Community Development Plan's goals of: Encourage an increase in the supply of good quality housing for households at all income levels,; and Encourage other services that will benefit low and moderate income persons (Short-term and Long-term goal)"

Kathy Pellerin, Executive Director of Claremont Learning Partnership noted had received a CDBG grant and reported being almost finished with the roof, HVAC systems have been ordered, windows should be installed around summer time, the parking lot should be installed around May. Ms. Pellerin noticed energy savings with just two new HVAC systems.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Michelle Aikens, the Executive Director of Claremont Housing Authority for Marion Phillips Home noted they were awarded a CDBG grant to replace their boiler system that was about fifty years old an in constant need of repair, the project went very smoothly and is finished

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing

Pascale Graham the Executive Director of Turning Points Network thanked the Council for the support of their prior CDBG grant. Ms. Graham explained Turning Points is now looking at 227 Broad Street in hopes to develop further housing and noted the huge gap in permanent affordable housing in this area for survivors of domestic and sexual assault. Turning Points offers an emergency shelter program, and transitional housing program. Majority of the people Turning Points serve are very low-income people. The study would be for environmental review, architectural design, exploratory functions making sure to acquire all capital expenses for this project.

Mayor Girard read again from the script:

"This plan outlines measures, under the Uniform Relocation Act, required for CDBG projects that involve any displacement or relocation of persons (or businesses), if the City were to undertake a CDBG project which involved displacement or relocation they would follow this plan. The plan outlines the measures they would take to find

comparable, suitable housing for persons (or businesses) displaced or relocated. This is a Planning Study, no displacement or relocation will occur.

This is the update on the progress of a \$717,370 in CDBG-CV Public Facilities grant towards improvements at the Claremont Learning Partnership building at 169 Main Street. Improvements to include new roof with insulation barrier, installation of fresh air HVAC systems, weather tight doors, replace all windows with broken seals, enhance the security around the perimeter of the building, add solar panels to the roof, and replace missing asphalt in the parking lot on the Elm Street side of the building. The majority of the people served at the Claremont Learning Partnership are of low or moderate income. To date the roofing is substantially complete and the HVAC improvements are underway. The remainder of the work is anticipated to commence in spring 2024.

This is the update on the progress of a \$467,000 CDBG Housing grant towards improvements at the Claremont Housing Authority's property, the Marion Phillips Apartments, at 243 Broad Street, Claremont. Improvements to include Boiler System Replacement. All of the 96 apartments are occupied by elderly and disabled persons of extremely low and low income. The heating system improvements are complete."

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing

Motion to Submit CDBG Application for Turning Points Network Planning Study

The Claremont City Council hereby approves the submission of a Community Development Block Grant planning study application for up to \$25,000 in CDBG Planning Study funds (consistent with public hearing notice), to study the development of four units of permanent housing at 227 Broad Street for survivors of domestic violence and sexual assault and other situations, and to further authorize the City Manager to sign and submit the application, and upon approval of the CDBG planning study application, authorize the City Manager to execute any documents which may be necessary to effectuate the CDBG planning study contract and any other amendments thereto.

A motion was made by Councilor Koloski and seconded by Councilor Limoges to submit the CDBG application for turning points network planning study.

Roll call:

Koloski – yes

Tremblay – yes
Limoges - yes
Matteau – yes
Batchelder – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 9-0

Motion to Adopt the City’s Residential Anti-Displacement and Relocation Assistance Plan – Turning Points Planning Study, 227 Broad Street

The Claremont City Council hereby moves to adopt the City’s Residential Anti-Displacement and Relocation Assistance Plan for the proposed CDBG Planning Study funds to be used for a planning study to develop four units of permanent housing at 227 Broad Street.

A motion was made by Councilor Koloski and seconded by Councilor Batchelder to adopt the City’s Residential Anti-Displacement and Relocation Assistance Plan – Turning Points Planning Study, 227 Broad Street.

Roll call:
Koloski – yes
Tremblay – yes
Limoges - yes
Matteau – yes
Batchelder – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 9-0

Ordinance 622 Cottage Developments

Director Merrill noted the Planning Board recommended this type of housing as a tool to help with the housing crisis. When it came to Council the first time, the suggestion was 1500 sq ft. Was too large and to change it to 1000 sq. ft. The planning board made that change and is now being brought back to Council.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-THREE

ORDINANCE #622

ZONING ORDINANCE AMENDMENTS

COTTAGE DEVELOPMENTS

The City of Claremont Ordains:

Pursuant to RSA 675:2 and RSA 674:16, Chapter 22, Zoning, of the Claremont City Code is hereby amended as follows:

Section 1. Definitions.

Amend Section 22-1, Definitions, to add the new definitions for "Cottage" and "Cottage Development" as follows:

Cottage shall mean a detached owner-occupied one-family dwelling unit with a maximum gross living area of one thousand square feet (1,000 sq. ft.) and a maximum footprint of one thousand square feet (1,000 sq. ft.). Porches are to be included in the calculation of maximum footprint. Spaces with a ceiling height of six feet or less measured to the exterior walls, such as in a second-floor area under the slope of the roof, shall be excluded when calculating the total floor area of a cottage. Cottages may also be attached horizontally in blocks of no more than three (3) units.

Cottage Development shall mean a development on a single lot having shared open space intended to serve cottages that interact together as a small community.

Section 2. Conditional Use Permits.

Amend Section 22-147 to permit "Cottage Developments" in the Agricultural Residential District (AR) subject to receiving a Conditional Use Permit, to read as follows:

Sec 22-147. Conditional use permits.

The following uses may be permitted in the agricultural residential district by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state.

1. Duplexes.
2. ADUs, subject to the regulations contained in section 22-513.
3. *Cottage Developments, subject to the regulations contained in section 22.514.*

Amend Section 22-167 to permit "Cottage Developments" in the Rural Residential District (RR), subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-167. Conditional Use Permits.

The following uses may be permitted in the rural residential district by the planning board subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state.

1. Duplexes.
2. ADUs, subject to the regulations contained in section 22-513. (12/14/2022)
3. *Cottage Developments, subject to the regulations contained in Section 22-514.*

Amend Section 22-187 to permit "Cottage Developments" in the Rural Residential District II (RR-2) subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-187. Conditional Use Permits.

The following uses may be permitted in the rural residential district II by the planning board subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state.

1. Duplexes.
2. ADUs, subject to the regulations contained in section 22-513.
3. *Cottage Developments, subject to the regulations contained in section 22.514.*

Amend Section 22-207 to permit "Cottage Developments" in the Residential District I (R-1) subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-207. Conditional Use Permits.

The following uses may be permitted in the residential district I by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet per dwelling unit for the first dwelling unit and five thousand (5,000) square feet per additional dwelling unit. (12/14/2022)
 - c. The total number of dwelling units does not exceed a maximum of eight (8).
 - d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.

(3) *Cottage developments, subject to the regulations in section 22-514.*

Amend Section 22-227 to permit "Cottage Developments" in the Residential District II (R-II) subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-227. Conditional Use Permits.

The following uses may be permitted in the residential district II by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet per dwelling unit for the first dwelling unit and five thousand (5,000) square feet per additional dwelling unit.
 - c. The total number of dwelling units does not exceed a maximum of eight (8).
 - d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.
- (3) *Cottage developments, subject to the regulations in section 22-514.*

Amend Section 22-298 to permit "Cottage Developments" in the Business District II (B-II) subject to receiving a Conditional Use Permit, to read as follows:

Sec. 22-298. Conditional Use Permits.

The following uses may be permitted in the business district II by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet for the first dwelling unit and another five thousand (5,000) square feet per additional dwelling unit.
 - c. The total number of dwelling units does not exceed a maximum of eight (8).

- d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.
- (3) *Cottage developments, subject to the regulations in section 22-514.*

Add a new Section to Division 11, Multiple Use Healthcare District (MHU) to provide for Conditional Use Permits to read as follows:

Sec. 22-378. Conditional Use Permits

The following uses may be permitted in the multiple use healthcare district by the planning board, subject to the regulations contained in section 22-100 et. Seq., as well as any other application regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) *Cottage developments, subject to the regulations in section 22-514.*

Section 3. Division 11 Multiple Use Healthcare District (MHU).

Renumber the Division 11 section numbers subsequent to the addition of Sec. 22-378, to read as follows:

Sec. 22-379. Special Exceptions.

Sec. 22-380. Density.

Sec. 22-381. Parking.

Sec. 22-382. General Regulations.

Secs. 22-383 – 22-385. Reserved.

Section 4. Division 12. City Center Zoning Districts

Amend Sec. 22-387, Table of Uses, to add Cottage Developments into the table as a Residential use to appear as follows:

	City Center Residential I District	City Center Residential II District	Professional Residential District	Mixed Use District	City Center Business II District	Additional Regulations Reference (refer to these sections for additional regulations)
Residential	CR-1	CR-2	PR	MU	CB-2	
Single-family dwelling	P	P	P	CU	P	Sec. 22-387.1
Duplex		CU	CU	CU	CU	Sec. 22-387.1
Multifamily dwelling		P	P	CU	P	Sec. 22-387.1

Conversion of existing single-family to duplex	CU	CU	CU	CU	CU	Sec. 22-387.2
Conversion of existing single-family or duplex to multifamily dwelling	CU	CU	CU	CU	CU	Sec. 22-387.2
Accessory dwelling units	CU	CU	CU	CU	CU	Sec. 22-513
Accessory uses and buildings	P	P	P	P	P	
Manufactured housing on individual lots	P	P				Sec. 22-387.4
Planned residential development		SE				Sec. 22-387.5
<i>Cottage developments</i>	<i>CU</i>	<i>CU</i>	<i>CU</i>	<i>CU</i>	<i>CU</i>	<i>Sec. 22-514</i>

Section 22-514. Cottage Developments

Add a new Sec.22-514, Cottage Developments, to Division I of Article V, Supplementary District Regulations, and renumber the remaining sections of the Division as follows:

Sec. 22-514 Cottage Developments

514.1 Purpose. The purpose of this section is to provide opportunities for single family housing that is small, energy-efficient, and affordable; to allow flexibility in site and design standards while promoting projects that ensure compatibility with surrounding land uses and existing neighborhoods; and to promote sustainability and neighborhood interaction through integrated design.

Cottage developments are intended to serve as part of the City's overall housing strategy to encourage affordability, innovation and variety in housing design and site development while ensuring compatibility with existing neighborhoods, and to promote a variety of housing choices to meet the needs of a population diverse in age, income, household composition and individual needs.

514.2 Applicable Use Districts. Cottage developments are allowed by conditional use in all zoning districts except the I1, I2 or I3 districts, in accordance with Sections 22-100 and 22-101 of this chapter and the requirements of this section.

514.3 Number and Arrangement of Units. Cottage developments shall contain a minimum of three (3) and a maximum of sixteen (16) cottages, located in one or more clusters to maximize efficiency of land use and to encourage a sense of community among the residents. Each cluster shall include a minimum of three (3) units.

514.4 Lot Size. All cottage developments shall have a minimum lot area of one-half acre, except in the AR, RR, RR2, R1 and R2 Districts, where a minimum lot area of 40,000 sq. ft. is required.

514.5 Density and Building Coverage.

(a) Permitted density shall be based on 2,500 sq. ft. of lot area per each cottage.

(b) The maximum permitted building coverage shall be 60% per cottage lot. This allows for a 1,000 SF home (maximum allowed footprint for a cottage per the definition of a cottage) with 1,500 SF of open space left per cottage lot. 400 SF of that 1,500 SF must be dedicated to common open space (see 514.6D)

514.6 Design Standards. The following design standards are intended to define design parameters to create a small community of cottages oriented around open space and to achieve compatibility with adjacent uses.

A. Individual Cottage Spaces. For each detached cottage, the site plan approved by the Planning Board shall delineate a building site for each detached cottage of no more than 1,000 sq. ft. (Refer to definition of cottage)

B. Detached Cottages. At least 50% of the cottages in the development shall be detached units.

C. Setbacks.

1. Interior Setbacks: The minimum setback between units within a cottage development shall be 10 feet, measured from the nearest point of the exterior walls.

2. Exterior Setbacks: Setbacks to property lines shall be in accordance with the underlying zoning district requirements.

D. Common Open Space. A minimum of 400 square feet of common open space shall be provided per cottage and per cluster. The common open space area for each cluster shall be contiguous and shall abut all of the cottages in the cluster. Cottages shall be oriented around and have their main entry from the common open space.

E. Roofs and Porches.

1. The highest point of the roof of the cottage shall not exceed 24 feet.

2. Cottages shall have an unenclosed, covered front primary entry and porch of at least 60 square feet in size. The front porch shall be oriented toward a common open space. The intent of this porch requirement is to create outdoor space in each cottage that is visually and physically connected to the common open space and to other cottages. The footprint of the porch shall be included when calculating the total floor area of a cottage.

F. Parking Location and Screening Requirements. The cottage development shall provide a minimum number of off-street parking spaces equal to one (1) parking space per cottage and a maximum number of off-street parking spaces equal to one and a half (1.5) spaces per cottage. In addition:

1. Parking areas shall be screened from public streets and adjacent residential uses by landscaping or architectural screening.
2. Parking areas shall be prohibited in the minimum required front yard.
3. Parking areas shall be separated from the common open space by landscaping or an architectural screen.

G. Existing Dwellings. An existing detached or attached one-family dwelling that is incorporated into a cottage development and is nonconforming with respect to the standards of this section shall be permitted to remain on a site used for a cottage development and shall be considered a cottage for purposes of this section. However, the extent of the noncompliance may not be increased, unless the proposed change is determined by the Planning Board to be consistent in character, scale and design with the cottage housing development.

H. Street Facing Facades. All cottages within 50 feet of a public street shall have street facing facades that avoid blank walls in order to avoid the appearance of “turning their backs” to the street. For all such cottages, a minimum of 25 percent of the street facing façade shall be comprised of windows and/or glass doors.

514.7 Cottage developments may be permitted subject to satisfactory solution regarding:

- (a) the ownership, use, and maintenance of common open space land to be held in common;
- (b) water supply; and
- (c) wastewater disposal.

Such solution may be a homeowners association or similar legal mechanism.

514.8 Illustrations of Cottage Development Designs.



Secs. 22-515—22-526. Reserved.

Section 6. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 22 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 7. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 8. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to accept Ordinance 622 to a second reading at the next City Council Meeting on February 28th, 2024.

Assistant Mayor Matteau read the Explanation of proposed action into the Record.

Assistant Mayor Matteau commented on the challenges of housing in the upper valley, and suggested the need to start looking at innovative ways to support these challenges.

Councilor Limoges shared disagreement with putting these structures outside of city limits, and had concern for stressing safety services.

Councilor Hemingway shared concern for the square footage and well contamination.

Councilor Batchelder asked if the City allows mobile home parks to operate without city services
Director Merrill indicated, yes.

Assistant Mayor Matteau stated the City has a housing crisis and this is just a tool for developers, any plans will have to be designed and approved.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Koloski – yes

Tremblay – yes

Limoges - no

Matteau – yes

Batchelder – yes

Hemingway – no

Hayden – yes

O’Hearne – no

Girard – yes

Motion carried 6-3

Council Goals and Objectives

Manager Manale reviewed the Goals and Objectives worksheet and noted what was highlighted were the Councils suggestions.

Councilor Koloski suggested Goal 7 “maintain current staffing levels” reads incorrectly and should be changed to “maintain budgeted staffing levels.”

COMMITTEE REPORTS

Councilor Tremblay reported the Historic District Commission met and reviewed an application for emergency exit stairs, and the committee requested the contractor come back with new plans, the contractor has not come back with new plans as of yet.

Councilor Limoges reported the Policy Committee meeting is next week.

Assistant Mayor Matteau reported the Planning Board reviewed a site plan application for a conditional use permit parking lot. The committee had an extensive discussion on Airbnb’s, possibly being brought to Council soon. The Planning Board Chair and Vice-Chair met with Director Merrill for Master Plan updating.

Councilor Batchelder noted he Conservation Commission meets tomorrow night.

Councilor Hayden reported the EPA Steering Committee held interviews for two proposals and scored the contractors, at the next meeting the committee will discuss the evaluation.

Mayor Girard reported the Airport Committee discussed long term goals and projects like a weather station, and possible hanger improvement.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Limoges added there is a growing Asian community, and said happy spring festival said in Chinese.

Assistant Mayor Matteau wants to make sure the tax exemptions are put on the agenda for review in April.

By consensus the City Council agrees to sign the Letter of Support for the City of Claremont, NH FY 2024 Rural Business Development Grant, Councilor Batchelder read the Letter into the record.

Mayor Girard noted there will be a public hearing for a Charter Amendment on March 13th a regularly scheduled Council Meeting.

Councilor Limoges suggested bringing the “healing wall” a replica of a Vietnam Veterans Memorial wall. Councilor Limoges asked for permission to go forward to gather information for the wall, Mayor Girard agreed this was a good idea to look into.

Councilor Koloski would like to see photos back in Council Chambers. Councilor Koloski asked if there was an issue with street lights, where to call. Manager Manale suggested DPW/Eversource.

Councilor Koloski asked when the Council will be reviewing the CIP.

Councilor Koloski asked what departments do with surplus materials, and would like to see a list from each department.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:02 p.m., a motion was made by Councilor Batchelder and seconded by Councilor O’Hearne to adjourn.

Voice vote:

Koloski – yes

Tremblay – yes

Limoges - yes

Matteau – yes

Batchelder – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 9-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council